

26TRCV00452 26TRCV00452

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Case Number: 26TRCV00452 Hearing Date: June 24, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

LYNN COUCH

;

Plaintiff,

vs.

save medical & aesthetic

group

, et al.;

Defendants.

Case

No.:

26TRCV00452

Hearing

Date:

June

24, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT SAVE MEDICAL & AESTHETIC GROUP'S

DEMURRER TO PLAINTIFF LYNN COUCH'S FIRST AMENDED COMPLAINT

MOVING PARTY: Defendant, Save Medical &

Aesthetic Group

RESPONDING PARTY: Plaintiff, Lynn Couch

(1)

Defendant

Save Medical & Aesthetic Group's Demurrer to Plaintiff Lynn Couch's First

Amended Complaint is OVERRULED pursuant to Code of Civil Procedure section 1005,

subdivision (b).

The Court considers the moving

papers filed on June 2, 2026, the opposition brief filed on June 11, 2026, and

the reply brief filed on June 16, 2026.

BACKGROUND

Factual Background

On February 6, 2026, plaintiff

Lynn Couch ("Plaintiff") filed the Complaint against defendants Save Medical

& Aesthetic Group ("Save"), Jinah K. Choi, Sang S. Lee, and DOES 1 through 50.

On April 16, 2026, Plaintiff

filed the First Amended Complaint ("FAC") against Save, Jinah K. Choi, Sang S.

Lee, and DOES 1 through 50. The FAC

includes the following causes of action: (1) Medical Negligence; (2) Fraud –

Concealment; and (3) Medical Battery. On

May 14, 2026, Save's counsel met and conferred with Plaintiff's counsel over

the phone. (Declaration of Nicholas R.

Webb ("Webb Decl."), ¶¶ 3-4.) Subsequently,

on May 22, 2026, Save's counsel sent a meet-and-confer letter via email to

address the alleged deficiencies identified in the demurrer. (Webb Decl., ¶¶ 3-4.) The parties were unable to resolve the issues

through informal discussion, necessitating the filing of this demurrer. (Webb Decl., ¶ 5.)

LEGAL STANDARD

A demurrer can be used only to

challenge defects that appear on the face of the pleading under attack or from

matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311,

318.) "To survive a demurrer, the

complaint need only allege facts sufficient to state a cause of action; each

evidentiary fact that might eventually form part of the plaintiff's proof need

not be alleged." (C.A. v. William S.

Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of

the cause of action, the demurrer admits the truth of all material facts

properly pleaded. (Aubry v. Tri-City

Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions,

deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67

Cal.2d 695, 713.)

A pleading is uncertain if it

is ambiguous or unintelligible. (Code

Civ. Proc., § 430.10, subd. (f).) A

demurrer for uncertainty may lie if the failure to label the parties and claims

renders the complaint so confusing that the defendant cannot tell what he or

she is supposed to respond to. (Williams

v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is

strictly construed, even where a complaint is in some respects uncertain,

because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly's of California, Inc.

(1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Save demurs to Plaintiff's second

and third causes of action in the FAC, contending that these claims are

uncertain or Plaintiff fails to state facts sufficient to constitute a cause of

action against Save. (Dem., p. 3:4-16.) However, Save did not file and served the demurrer

in accordance with Code of Civil Procedure section 1005, subdivision (b).

“Unless otherwise ordered or

specifically provided by law, all moving and supporting papers shall be served

and filed at least 16 court days before the hearing. The moving and supporting papers served shall

be a copy of the papers filed or to be filed with the court.

However, if the notice is

served by mail, the required 16-day period of notice before the hearing shall

be increased by five calendar days if the place of mailing and the place of

address are within the State of California, 10 calendar days if either the

place of mailing or the place of address is outside the State of California but

within the United States ..., and 20 calendar days if either the place of mailing

or the place of address is outside the United States, and if the notice is

served by facsimile transmission, express mail, or another method of delivery
providing for overnight delivery, the required 16-day period of notice before
the hearing shall be increased by two calendar days." (Code Civ. Proc., § 1005, subd. (b).)

Here, Save filed the demurrer

on June 2, 2026. Given that the demurrer

is scheduled for hearing on June 24, 2026, Save was obligated to file and serve

the moving papers by June 1, 2026, if served personally. However, the demurrer was filed one court day

after this deadline. Furthermore, Save

sent the demurrer to Plaintiff via both email and mail. Consequently, Save was required to serve the

demurrer on Plaintiff by May 31, 2026.

Therefore, Save's demurrer is OVERRULED.

ORDERS

1) Defendant

Save Medical & Aesthetic Group's Demurrer to Plaintiff Lynn Couch's First

Amended Complaint is OVERRULED.

2) Save

is ordered to provide notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: June 24, 2026

Tamara

Hall

Judge

of the Superior Court